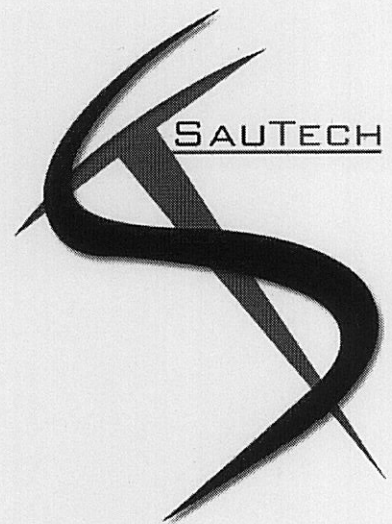




NON-DISCLOSURE AND NON-CIRCUMVENTION AGREEMENT

27 May 2022

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1 NDA - NON DISCLOSURE PARTIES –

The parties to this agreement are SAUTECH (PTY) Ltd, Registration number 2003/006813/07

and

Ambledown Financial Services (Pty) Ltd, Registration Number 2004/006271/07

hereinafter collectively referred to as the "**Parties**"

This Non-Disclosure and Non-Circumvention Agreement ("Agreement") shall bind the undersigned Parties for the terms and conditions expressly stated and agreed to below.

In this Agreement, each Party is hereinafter referred to individually as a "Receiving Party" or "Disclosing Party" as the context may require .

2 EFFECTIVE DATE AND DURATION

This Agreement shall become effective upon the date of signing of this Agreement (the "**Effective Date**") and the obligations of each Party set forth in this Agreement will survive the termination of the Business Discussions regardless of whether a transaction is concluded and shall remain in full force and effect for a period of 2 years from the date hereof, provided that if a Receiving Party continues to hold Confidential Information from the other Party after expiry of such 2 year period, the Receiving Party shall continue to be bound by the terms of this Agreement in relation to that Confidential Information.

Any provision of this Agreement which is intended to remain in full force and effect, shall continue to apply, notwithstanding the earlier termination or expiration of this Agreement.

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3 PURPOSE

The Parties intend to engage in substantive discussions and sharing of Confidential Information regarding potential business, business strategies and client information.

In connection with the Business Discussions, it may be necessary and/or desirable for the Parties to provide each other with, or allow access to, proprietary, technical, or business data, and/or other Confidential Information.

The Parties agree that they are under an obligation of confidentiality on the terms set out in this Agreement. The Parties believe and hereby agree that information disclosed regarding and in relation to the Business Discussions has significant commercial value that would be diminished by unauthorized disclosure. Accordingly, the commitments of confidentiality in this Agreement are a condition to the Parties' willingness to engage in the contemplated Business Discussions.

The Parties agree that they shall not use any advantages derived from the Confidential Information in their own business or affairs, unless the same is done as part of the Business Discussions and/or pursuant to a new agreement between each of the Parties or as otherwise agreed in writing.

4 CONFIDENTIAL INFORMATION

The term "Confidential Information" as used in this Agreement shall mean any of the following:

- (a) any and all information that is conspicuously marked as being of a confidential, proprietary or of a secret nature received by one party from the other party regarding the Business Discussions; and
- (b) any and all information gathered by either party in the course of discussing and/or implementing the Business Discussions, whether written or oral, and if written, however produced, that is conspicuously marked or would logically be considered confidential, proprietary or of a secret nature and the subject matter of this Agreement, and if oral or visually disclosed shall be identified as being confidential by the Disclosing Party at the time of disclosure, and which information shall include, without limitation:
 - (i) the fact that discussions between the Parties regarding the Business Discussions are taking place;
 - (ii) all ideas, concepts, strategies, business and product development plans; corporate and financing structures; customer, client, employee, contractor consultant, supplier and agent information; financial and pricing data; summaries, reports, drawings, charts, specifications, forms, materials;

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promoting and advertising plans and any term sheets, agreements and contracts (including this Agreement) relating in any way to the Business Discussions; and

- (iii) all information of any nature concerning a Party's financial contacts and resources, distribution contacts and resources, technical information and know-how, business dealings and negotiations with third parties, potential mergers and acquisitions, shareholders, members, clients, employees, consultants and affiliates.

4.1 For purposes of this Agreement, the term "Confidential Information" does not include information which:

- (a) is publicly available or becomes generally available to the public other than as a result of a disclosure by a Party in breach of this Agreement;
- (b) becomes available to the Receiving Party on a non-confidential basis from a source other than the Disclosing Party; provided, however, that the Receiving Party reasonably believes the source to have rightfully and lawfully obtained such information and reasonably believes such source is not bound by a confidentiality agreement or other obligation of secrecy with the Disclosing Party;
- (c) is independently developed by the Receiving Party without use of any Confidential Information; or
- (d) was in the possession of the Receiving Party at the time of disclosure that was not acquired, directly or indirectly, from the Disclosing Party.

The provisions of this Agreement prohibiting disclosure of Confidential Information shall not apply to Confidential Information that a Party is required to disclose pursuant to the laws or regulations of any country with jurisdiction over the affairs of the Receiving Party or any affiliates, or by any requirement or order of a court of competent jurisdiction or other competent judicial, governmental or regulatory body, or by the rules of, or notice issued by, any stock exchange or listing authority, provided that, to the extent legally permissible and reasonably practicable, before making such disclosure, the Receiving Party shall promptly notify the Disclosing Party of such disclosure order in order to give the Disclosing Party an opportunity to seek a protective order requiring that the Confidential Information that is the subject of such order be held in confidence by such court or agency or, if disclosed, be used only for the purposes for which the order was issued, provided, further, that if a disclosure order is not quashed or a protective order is not obtained, the Confidential Information disclosed in a response to such court or governmental order shall be limited to that Confidential Information which is legally required to be disclosed in such response to such court or governmental order.

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5 PROTECTION OF PERSONAL INFORMATION

The respective Parties acknowledge that they may, while performing services to the other Party/ies, obtain and process "sensitive information" as defined by POPIA (Protection of Personal Information Act, 2013, as amended) and will therefore be required to exercise an even higher standard of care when processing this information in respect of security of the information from a technological and physical security perspective. The Parties undertake and warrant that they shall at all times:

- (a) abide by the highest privacy and data protection standards and policies;
- (b) duly comply with all the requirements or conditions prescribed by POPIA at any time relating to the processing of any information or data (including Data), including collecting, using, protecting, securing, storing or destroying it, and in compliance with all relevant provisions of POPIA so as to ensure that no loss or unauthorised disclosure of such information occurs, whether internally or externally;
- (c) collect and process such information fairly and in compliance with POPIA;
- (d) promptly advise and provide the other Party/ies with all relevant information in its possession concerning any unauthorised or accidental access to, disclosure or loss of personal information in its possession, in particular, personal information acquired during its performance of services; and,
- (e) duly comply with all other applicable regulations and requirements in terms of POPIA.

6 DISCLOSURE TO THIRD PARTIES AND AFFILIATES

- 6.1 The Receiving Party agrees that, subject to the terms of this Agreement, it shall not, at any time, disclose, in whole or in part, the Confidential Information to any third party other than in accordance with clause 4.3 and to its affiliates in accordance with clause 5.2, without first obtaining express written permission from the Disclosing Party. The Receiving Party further and specifically agrees not to disclose, in whole or in part, the Confidential Information (including, without limitation, the provisions of any term sheets or letters of intent) to any third parties with whom the Receiving Party is aware the Disclosing Party is in negotiations with regarding the Business Discussions.
- 6.2 Without prejudice to clause 4.3, the Receiving Party may not reveal Confidential Information to any affiliates, persons or other entities except those who are deemed by the Receiving Party to be necessary for the purpose of discussing, evaluating or advising on the Business Discussions, and provided that the Confidential Information will be used by such affiliates, persons or other entities (including attorneys and accountants) solely in connection with the Business Discussions.
- 6.3 The Receiving Party shall take all necessary and appropriate precautions to avoid the unauthorized disclosure of Confidential Information. The Receiving Party shall treat the Confidential Information of the Disclosing Party with no less care than it employs for its own Confidential Information of a similar nature that it does not wish to disclose, publish or disseminate, but not less than a reasonable level of care.


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6.4 As used in this Agreement, the term "affiliates" shall include, but shall not be limited to:

- (a) any entities of which the Receiving Party is an employee, officer, director, partner, member, ten percent (10%) or greater shareholder or controls, and any subsidiaries, partnerships or any other entities controlled by, or under common control with, such entities;
- (b) all officers, directors, agents, employees, partners, ten percent (10%) or greater shareholders (any entity controlled by or under common control with, such entity), consultants and advisors of the Receiving Party and/or its affiliates;
- (c) any entity newly formed by the Receiving Party subsequent to the Effective Date under the same or a similar name.

In this Agreement, "control" means: (a) the ability to control the composition of the board of directors or equivalent body whether through ownership of voting capital, by contract or otherwise; (b) the ownership of a majority of the shares or the right to acquire a majority of the shares; or (c) the power to exercise a majority of the total voting rights, and the terms "controlled by" and "under common control with" have corresponding meanings.

7 DISPOSITION OF CONFIDENTIAL INFORMATION

7.1 If at any time the Disclosing Party requests in writing, the Receiving Party shall immediately return to the Disclosing Party or, with the Disclosing Party's consent destroy, all written and tangible Confidential Information originating with the Disclosing Party (including, without limitation, all documents, business plans, booklets, proposals, confidential memoranda, term sheets, letters, memos, drawings, charts, specifications, discs, magnetic tapes, electronic files and data bases) and any and all copies thereof. Notwithstanding the foregoing, the Receiving Party may retain any of the Confidential Information it is required by law, rule or regulation, including the rules of an applicable professional body, provided that any such Confidential Information is kept strictly private and confidential in accordance with the terms of this Agreement.

7.2 Such return or destruction of the Confidential Information shall be certified in writing by the Receiving Party.

8 NO INTELLECTUAL PROPERTY RIGHTS CREATED

8.1 Confidential Information shall remain the sole and exclusive property of the Disclosing Party, provided that any documents prepared by or on behalf of the Receiving Party and/or its affiliates which contain, are based on or utilize part or all of the Confidential Information remain the property of the Receiving Party or its affiliates, as appropriate. Except as requested by the Disclosing Party (including but not limited to in connection with the provision of advisory services to the Disclosing Party for the purpose of the Business Discussions), the Receiving Party shall make no commercial use whatsoever, in whole or in part, of the Confidential Information, shall


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not use the Confidential Information to establish or operate or assist anyone in the establishment or operation of a business, product or service similar or in competition, directly or indirectly, with the business of the Disclosing Party anywhere in the world. Further, the Receiving Party shall not mechanically copy or otherwise reproduce the Confidential Information, except as may be necessary to evaluate, advise on and/or implement the Business Discussions.

- 8.2 Subject to clause 7.1, nothing in this Agreement shall be construed as to grant the Receiving Party any right or license under any patent, copyright, trademark or any other right relating to the Confidential Information.

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9 REMEDIES FOR BREACH

- 9.1 The Parties agree that this Agreement shall be governed and construed in accordance with South African law and the Parties irrevocably submit to the exclusive jurisdiction of the South African courts.
- 9.2 The Parties acknowledge that the Confidential Information protected under this Agreement is of an extraordinary nature and value and that the Disclosing Party may not, in the event of any unauthorized disclosure or use by the Receiving Party, be adequately or reasonably compensated for in damages awarded in an action at law. The Parties therefore agree that in the event of such unauthorized disclosure or use by the Receiving Party, the Disclosing Party shall be entitled to seek of the Receiving Party specific performance of all acts and undertakings so required under this Agreement and to seek injunctive and other equitable relief to prevent any further violation of any provisions herein. In no event shall injunctive relief be considered the Disclosing Party's exclusive remedy for any breach or violation by the Receiving Party of its obligations under this Agreement.

10 ARBITRATION

- 10.1 Should any dispute arise out of this Agreement, including the interpretation thereof or any other matter specifically referred to herein, the Parties agree to negotiate for the settlement thereof in accordance with the following provisions:
- (a) The Parties shall use all reasonable endeavors to promptly negotiate in good faith and settle amicably any dispute, controversy or claim arising out of or relating to this Agreement and any amendment thereof, including without limitation its formation, validity, binding effect, interpretation, performance, breach or termination that may arise out of or relate to this Agreement or a breach thereof within 14 days of notification by one Party to the other of such dispute.
 - (b) In the event that the Parties are unable to resolve the dispute pursuant to the terms set out in the preceding paragraph the dispute at the election of any Party shall be submitted to arbitration, the arbitrator to be an advocate of at least ten years standing and to be appointed by the Chairperson of the Johannesburg Society of Advocates in the Republic of South Africa. The place of mediation shall be Johannesburg. The language to be used in the mediation shall be English.

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11 NON-CIRCUMVENTION

- 11.1 The Receiving Party will not, at any time prior to the expiration of this Agreement without the express prior written consent of the Disclosing Party, which consent the Disclosing Party may withhold in its sole discretion circumvent, or attempt to circumvent, compete, avoid, by-pass or obviate the Disclosing Party by entering into any direct or indirect negotiations, communications, or transactions relating to the Business Discussions with any parties, contacts or sources introduced (the "Introduced Party") to the Receiving Party by the Disclosing Party, provided that nothing in this clause 9.1 shall prevent the Receiving Party from taking any action in furtherance of advisory services to the Disclosing Party.

12 REPRESENTATIONS AND WARRANTIES

Each Party hereby warrants, represents and covenants to the other Party that:

- (a) each respective Party has the right to enter into this Agreement and to perform fully all of its obligations under this Agreement, and
- (b) each respective Party is not a party to any other agreement or under any other obligation to any third party which would prevent it from entering into this Agreement and complying with the terms and conditions set forth in this Agreement.

13 ETHICS

The Parties hereto acknowledge that the true spirit of this Agreement is one of mutual trust and confidence, reliance on each other to do what is fair and equitable, and to honour what has been agreed between the Parties hereto.

14 MISCELLANEOUS

- 14.1 This Agreement shall not be assigned by any of the Parties hereto.
- 14.2 This Agreement contains the full and complete understanding between the Parties with regard to the subject matter hereof and cannot be modified or amended except by a written instrument signed by each Party. This Agreement supersedes all prior agreements, whether written or oral, between the Parties with regard to the subject matter hereof. Each Party hereto acknowledges that no representation or promise in relation to the subject matter hereof not expressly contained in this Agreement has been made by the other Party.
- 14.3 Any notice or other communication hereunder shall be in writing and shall be deemed fully made or given:
- (a) when hand delivered,
 - (b) on the business day after it is delivered to a recognized overnight courier service for


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overnight delivery to a Party, or

- (c) three (3) business days after it is mailed to a Party by registered or certified mail, return receipt requested, in each case at the following addresses:

Sautech (PTY) Ltd

34 Stokroos Avenue, Breunanda, Krugersdorp, 1739

Ambledown Financial Services (Pty) Ltd

**Ambledown House, Eton Office Park East, c/o Sloane & Harrison Streets,
Bryanston**

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- 14.4 This Agreement shall not be binding on either Party until each Party hereto has executed this Agreement or a counterpart hereof and delivered such executed Agreement or counterpart, whether by facsimile or otherwise, to the other Party hereto or to its respective representatives.
- 14.5 The section headings contained in this Agreement are for convenience of reference only and are not intended to define, limit, or describe the scope of intent of any provision of this Agreement.
- 14.6 In the event that any provision contained in this Agreement shall be:
- (a) held by any court or arbitration tribunal to be unenforceable, illegal, void or contrary to public policy, or
 - (b) in conflict with any applicable statute, law, regulation or applicable collective bargaining agreement, then such provision shall be of no force or effect; provided, however, that in such event the provision of this Agreement so affected shall be curtailed and limited only to the minimum extent necessary to permit compliance with the minimum required, and no other provisions of this Agreement shall be affected thereby and all such other provisions shall continue in full force and effect.
- 14.7 No waiver by either Party of any rights under this Agreement nor the failure of either Party to enforce against the other any Party any provision, covenant or condition of this Agreement shall be deemed to be a waiver of any preceding or succeeding breach of the same or any other provision, covenant or condition.
- 14.8 All remedies, rights, undertakings, obligations and agreements contained in this Agreement shall be cumulative.
- 14.9 Any rules of interpretation that ambiguities are to be construed against the drafting party shall not apply.

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For: Sautech (PTY) Ltd

Signed at Krugersdorp on this 30th day of May 2022

Riaan v Jaarsveld
Name and Surname

Jaarsveld
Signature

For: Ambledown Financial Services (Pty) Ltd

Signed at Bryanston on this 27th day of May 2022

Grant Harling
Grant Harling
Operations Executive

Wonderful Chingwena
Wonderful Chingwena
Human Resources Executive